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April 28, 2017					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-02

HANGZHOU QIANWANG DRESS CO., LTD.

v.

RDD FREIGHT INTERNATIONAL INC.

ORDER TO SUPPLEMENT THE RECORD

On March 2, 2017, the Commission issued a Notice of Filing of Complaint and Assignment (Notice) for this proceeding. The Complaint is signed and verified by Lan Ye, who states that she is “the assistant manager of [Hangzhou Qianwang Dress Co., Ltd. (Hangzhou Qianwang)].” (Complaint at 7.)

The Initial Order in this proceeding requires the parties to submit a joint status report with a proposed discovery schedule within twenty days of the service of the answer. *Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order at 1 (ALJ Mar. 3, 2017) (Initial Order). Respondent RDD Freight International Inc. (RDD Freight) filed its answer on March 24, 2017.

On April 21, 2017, the Secretary received a letter from Lan Ye. The Assistant Secretary has filed the letter as part of the docket. The letter states:

We have contacted the defendant on April 9th and April 10th via email but got no response regarding our timeline for discovery. We then reach out to the defendant and the defendant’s lawyer on April 11th by phone and they refused to talk to us.

We are thereby filing a timeline for discovery that we believe is fair for all parties.

Given that the close of discovery is August 21, 2017:

First request for the production of documents and interrogatories, if any, to be served by May 15, 2017

All other written discovery to be served no later than June 15, 2017.

Depositions to be notice by July 20, 2017 and taken by August 15, 2017.

(Letter dated April 21, 2017 from Lan Ye to the Secretary.) The letter did not indicate that it had been sent to counsel for RDD Freight. The Assistant Secretary contacted Lan Ye and requested a certificate of service, but the certificate has not been filed.

On April 27, 2017, the undersigned asked the parties to appear for a conference by telephone. The call was conducted beginning at approximately 4:05 P.M. EDT. Lan Ye appeared for Hangzhou Qianwang and attorney Ren Rong Pan appeared for RDD Freight. An audio recording was made of the conference and sent to the parties. The Commission does not intend to create a transcript.

Commission Rules provide that “[a] party may appear in person or by an officer, partner, or regular employee of the party, or by or with counsel or other duly qualified representative, in any proceeding under the rules in this part.” 46 C.F.R. § 502.21(a). During the conference, counsel for RDD Freight stated that it is his understanding that Lan Ye is not an officer, partner, or regular employee of Hangzhou Qianwang. Counsel stated that he received an email from the principal of Hangzhou Qianwang in China stating the Lan Ye is a “friend.” Counsel forwarded a print copy of an email from the principal to the Office of Administrative Law Judges and a copy is attached to this order. Lan Ye then acknowledged that she is not an attorney and is not an officer, partner, or regular employee of Hangzhou Qianwang.

The information about Lan Ye raises at least two immediate problems. First, Commission Rules require that a complaint be verified; that is, signed by a person who has knowledge of the facts. 46 C.F.R. § 502.62(a)(3). Because Lan Ye is not an officer, partner, or regular employee of Hangzhou Qianwang, it is not readily apparent how she would have knowledge of the facts alleged in the Complaint. Second, because Lan Ye is not an attorney or officer, partner, or regular employee of Hangzhou Qianwang, she may not represent it in this proceeding.

In consideration of the foregoing, it is hereby

ORDERED that on or before May 26, 2017, complainant Hangzhou Qianwang Dress Co., Ltd., serve on respondent RDD Freight International, Inc., and file with the Secretary a new Verified Complaint signed by a person with knowledge of the facts alleged in the Complaint. It is

FURTHER ORDERED that on or before May 26, 2017, complainant Hangzhou Qianwang Dress Co., Ltd., designate an attorney or an officer, partner, or regular employee qualified to represent it in this proceeding. The person so designated must file a statement showing his or her authority to act in that capacity. *See* 46 C.F.R. § 502.22 (“Any individual acting in a representative

capacity in any proceeding before the Commission may be required to show his or her authority to act in such capacity.”).

The parties are again directed to contact the Commission’s Office of Consumer Affairs & Dispute Resolution Services (CADRS) at 202-523-5807. *See Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, Order at 1 (ALJ Mar. 3, 2017) (Initial Order). CADRS offers ombuds assistance, mediation, facilitation, and arbitration to resolve challenges and disputes involving cargo shipments. If the parties believe that they may be able to resolve this proceeding with CADRS’ assistance, a short delay of this proceeding may be entered at the request of both parties. A request for delay must be made by written motion, not by email or letter. *See Hangzhou Qianwang Dress Co., Ltd. v. RDD Freight International Inc.*, FMC No. 17-02, ¶ 14 (ALJ Mar. 3, 2017) (Initial Order) (“Any request for action by the Commission or presiding officer must be made by motion, not by letter or email request.”).

If Hangzhou Qianwang does not take the required actions by the stated date, the Complaint in this proceeding may be dismissed.

If the parties are not able to resolve this proceeding with the assistance of CADRS, it is likely that Hangzhou Qianwang would find it helpful to retain an attorney.


Clay G. Guthridge
Administrative Law Judge

Subject: Re: CASE HANGZHOU VS RDD
From: echo (echohats@aliyun.com)
To: rpanlaw@yahoo.com;
Cc: yelan871222@hotmail.com;
Date: Monday, April 17, 2017 9:40 PM

SHE IS MY FRIEND ONLY IN NEW YORK.
YOU KNOW WE ARE CHINESE FACTORY, SO MOSTLY TIME I'M IN CHINA. SO ANY QUESTION YOU SHOULD ASK ME DIRECTLY.
SOMETIME IF YOU CAN'T FIND ME, YOU CAN ASK HER TO FIND ME.

QIANXINGLIANG(HANGZHOU QIANWANG DRESS CO.,LTD.)

From: Attorney Pan <rpanlaw@yahoo.com>
Send Time: 2017年4月18日(星期二) 09:27
To: echo <echohats@aliyun.com>
Subject: Re: CASE HANGZHOU VS RDD

Is Lan Ye your employee?

REN RONG PAN, ATTORNEY AT LAW

This communication and contents hereof are being sent by or on behalf of a lawyer, which is covered by the Electronic Communication Privacy Act, 18 U.S.C. Sections 2510-2515 as well as the Federal and State's Rules on Evidence, which is privileged, confidential, or otherwise legally exempt from disclosure.

From: echo <echohats@aliyun.com>
To: Ren Rong Pan <rpanlaw@yahoo.com>
Sent: Monday, April 17, 2017 7:05 PM
Subject: Re: CASE HANGZHOU VS RDD

OK, let me know if you have any question about this case!

qian xingliang(Hangzhou qianwang dress co., ltd.)

From: Ren Rong Pan <rpanlaw@yahoo.com>
Send Time: 2017年4月17日(星期一) 21:52
To: echo <echohats@aliyun.com>
Subject: Re: CASE HANGZHOU VS RDD

Will take care of it!

Sent from my iPhone

On Apr 17, 2017, at 9:26 AM, echo <echohats@aliyun.com> wrote:

2nd written request

Please be advised
I do not have a lawyer and I am representing myself.
I didn't get any respond from you till now

Please let me know if the dates work for you from my original email
If you do not respond I will assume it is acceptable and I will file this with the FMC
HANGZHOU QIANWANG DRESS CO.,LTD.
QIANXIANGLIANG

Attention RDD
Please be advised